

follows:—The ship is within the territorial jurisdiction of the United States—*primâ facie* the Court of the United States has jurisdiction. But all nations have agreed to certain limitations of their absolute territorial jurisdiction—as, for instance, they have abjured all personal jurisdiction over a foreign sovereign within their territory, and this on account of his dignity, and all personal jurisdiction over foreign ministers, and, says the judgment, this is on the same principle; and all jurisdiction over a foreign army passing through the territory. Is the same immunity to be held to apply to ships of war? The judgment answers, Yes, and upon the same principle: i.e., that to hold otherwise would be inconsistent with the dignity—that is to say, the recognised independence of the foreign sovereign. After dealing with the case of private foreigners and merchant vessels in a foreign country, the judgment continues, “But in all respects different is the situation of a public armed ship; she constitutes a part of the military force of her nation, acts under the immediate and direct command of her sovereign, is employed by him in national objects. He has many and powerful motives for preventing those objects from being defeated by the interference of a foreign state. Such interference cannot take place without affecting his power and dignity. The implied license therefore under which such vessel enters a friendly port may reasonably be construed, and it seems to the Court ought to be construed, as containing an exemption from the jurisdiction of the sovereign within whose territory she claims the rites of hospitality.”

1880

 THE
PARLEMENT
BELGE.

The Prins Frederik (1) seems to us to be worthy of great attention. An armed ship of war belonging to the King of the Netherlands, was arrested on a claim for salvage. The case was elaborately argued upon the question of jurisdiction. An argument of the closest and most forcible reasoning, to which we see no answer, was presented by Dr. Arnold, the Admiralty advocate (see p. 466). “There is a class of things,” he says, “which are not subject to the ordinary rules applying to property, which are not liable to the claims or demands of private persons, which are described by civilians as *extra commercium*, and in a general enumeration are by them denominated *sacra religiosa, publica*

(1) 2 Dod. 451.